

Any party so examined may be cross-examined on his own behalf, confining the explanation to points on which he has been examined, under the following order :—

LVII.

Cross-examination of party to the record.

Evidence taken under Order L. may be rebutted by adverse testimony. Any party examined as therein provided may be further examined, on his own behalf, in relation to any matter respecting which he has been examined in chief. And, where one of several plaintiffs or defendants, who are joint contractors, or united in interest, has been so examined, any other plaintiff or defendant, so united in interest, may also be examined on his own behalf, or on behalf of those united with him in interest, to the same extent as the party actually examined. Provided nevertheless, that such explanatory examination must be proceeded with immediately after the examination in chief, and not at any future period, except by leave of the Court.

The following Order provides some stringent remedies in the case of any party to the record neglecting to attend to be examined.

LVIII.

Party to record not attending, is in contempt.

Bill may be moved to be taken *pro confesso*, or dismissed.

Any party refusing or neglecting to attend at the time and place appointed for his examination under Order L. may be punished as for a contempt; and it shall be lawful for the party desiring such examination, in addition to any other remedy to which he may be entitled, to apply to the Court, upon motion, either to have the bill taken *pro confesso*, or to have it dismissed, according to circumstances; and it shall be competent to the Court, upon such application, to order either that the bill be taken *pro confesso* against the party making default, or that it be dismissed; and, where from the circumstances of the case such order cannot be made, consistently with the rights of other parties to the suit, then it shall be competent to the Court to make such order, as to enlarging the time for passing publication, or otherwise, as to the Court may seem just.

Under the above Order 57, it might be supposed that the party examining an adverse party on the record necessarily subjects himself to the testimony that such witness may give in his own favour, if on the points on which he has been examined in chief. Under the following (59) Order, however, the examining party, whether a Plaintiff or a Defendant, may, if he is advised, omit to read any part of the testimony, and then the explanatory evidence cannot be read against him. This places the

Evidence cannot be read unless the examining party read it.

evidence taken by cross-examination. It differs from that can be the Defendant's Order :—

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The Court